

Protected Forest Rules

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State of Bihar - Act

Protected Forest Rules

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Protected Forest Rules

Rule PROTECTED-FOREST-RULES of 1967

Published on 9 November 1967

Commenced on 9 November 1967

[This is the version of this document from 9 November 1967.]

[Note: The original publication document is not available and this content could not be verified.]

Protected Forest Rules

Protected Forest Rules (C.C.F. Bihar & O. No. 8664 dated 9.11.1967). - The following are notification and Rules under Sections 30 and 32 of the Indian Forest Act, 1927 (XVI of 1927):-

(A) Bihar Protected Forest Rules.

(B) Santhal Parganas Protected Forest Rules.

1.

Power of Forest Officers under various Sections of the Indian Forest Act (Notification No. 257 No. 492-III-F-206/8R dated 22.6.1923 and No. 7532-III F-55-F dated 12.7.1930. - The State Government is pleased to appoint the Officers of the Forest Department, Bihar who are mentioned in column 1 of the following table to discharge the functions of a "Forest Officer" under the Indian Forest Act, 1927 which are mentioned opposite their names in column 2 of the said table.

Officers

Sections of the Act.

Brief description of functions

I.

(i)

The Chief Conservator of Forests, Bihar.

25

Power to dams, to way watercourses in reserved forests. N. B.

- This power is exercisable only with the previous sanction of the Commissioner of the Division in which the reserved forest is situated.

(ii)

Conservator of Forest, within their own circles,

26 (c) All sections mentioned hereafter in this column.

Power to notify the season in which fire may be kindled or carried, kept or carried in a reserved forest.

21

Publication of translation of notifications declaring forests to be reserved.

II.

(i)

Dy, Conservator of Forests.

26 (2)

Power to permit prohibited acts in a reserved forest.

(ii)

Asstt. Conservators.

34

Power to permit prohibited acts in a protected forest.

(iii)

Extra Asstt. Conservators

45 (2)

Power to notify depots for the reception of drift and other timber.

46

Giving notice of timber collected under Section 45.

47 (1) & (2)

Powers for dealing with statements of claim to drift and other timber.

50

Power to sell forest produce for Government dues.

53 (2)

Power to sell forest produce for Government dues.

III. All

(i)

Dy. Conservators

(ii)

Asstt. Conservators.

(iii)

Extra Asstt. Conservators, and

Power to permit prohibited acts in a reserved forest.

(iv)

Rangers in receipt of a salary of at least Rs. 100per
mensemwho are subordinate to any officer mentioned in clause
II above when specially authorised in this behalf by the
Conservator of Forests.

34

Power to permit prohibited acts in a protected forest.

IV. All

(i)

Rangers in receipt of a salary of less than Rs. 100per
mensem; and

26 (2)

Power to permit prohibited acts in a reserved forest.

(ii)

Foresters, who are subordinate to any officer mentioned in
clause II above, when authorised in this behalf by the
Conservator of Forests.

Power to permit prohibited acts in a protected forest.

V. All

(i)

Dy. Conservators

45 (2)

Power to collect drift and other timber.

(ii)

Asstt. Conservators

52 (i)

Power to seize property when a forest offence has been
committed.

(iii)

Extra Asstt. Conservators.

56

Power to take charge of forest produce on the conclusion of a
trial of a forest offence.

(iv)

Forest Rangers and Foresters

57

Power to accept charge of confiscated property when the
offender is not known.

(v)

Forest Guards (whether on permanent or temporary
establishment)

70 and 83(1)

Power to seize and impound cattle trespassing in a reserved or
protected forest. Power to take possession of forest produce
untill Government dues are paid.

VI. All

(i)

Dy. Conservators

(ii)

Asstt. Conservators

(iii)

Extra Asstt. Conservators,

64(1)

Power to arrest without warrant in cases mentioned in the Section.

(iv)

Rangers, and

(v)

Foresters incharge of a Range, whether on permanent or temporary establishment.

VII. All

(i)

Foresters not in charge of Ranges and

64(1)

Power to arrest without warrant in cases mentioned in the Section.

(ii)

Forest Guards, whether on permanent or temporary establishment

2.

The Commissioners of Divisions are authorised to sanction the stoppage of ways and water courses, in reserved forests, under Section 25 of the Indian Forest Act.

3.

The Forest Officers mentioned in clauses I, II, III and IV in column 1 of the foregoing table to direct at any time the immediate release of any property seized under Section 52 vide Section 61 of the said act.

4.

In exercise of the powers conferred by sub-section (1) of Section 68 of the said Act, the State Government is further pleased to empower.

(a)

The Forest Officers mentioned in clause I and II in column 1 of the foregoing table; and

(b)

such of the Forest Officers mentioned in clause III in column 1 of that table as may be specially authorised in this behalf by the Chief Conservators of Forests, to accept money by way of compensation for offences and to release property seized as liable to confiscation.

5.

Revenue Department Notification No. C/F-1006/58-1686 dated 1.6.58. - In exercise of the powers conferred by sub-section (1) of Section 72 of the Indian Forest Act, 1927 (Act XVI of 1927) the Governor of Bihar is pleased to invest the Divisional Forest Officers with powers under clause (a), (b) and (d) of sub-section (1) of Section 72 of the said Act within the local limits of their respective jurisdictions.

6.

in exercise of the power conferred by clause (a) of Section 76 of the said Act, the State Government is further pleased to direct that the Forest Officers mentioned in clause VII of the foregoing table shall exercise the power to arrest without warrant under Section 64 of the said Act in the following cases only:-

(a)

When an offence is committed near the frontier or border of another State:

(b)

Incendiary forests fire; and

(c)

when there is reason to believe that the accused has given a false name or address and is likely to abscond.

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